

SYLLABUS FOR THE 2026 BAR EXAMINATIONS

REMEDIAL LAW, LEGAL AND JUDICIAL ETHICS, WITH PRACTICAL EXERCISES (25%)

NOTE: Only laws, rules, issuances, and jurisprudence pertinent to these topics as of **June 30, 2025** are examinable materials within the coverage of the 2026 Bar Examinations.

I. GENERAL PRINCIPLES

- A. Concept and Nature of Remedial Law
- B. Procedural Laws Applicable to Actions Pending at the Time of Promulgation
- C. Construction of Procedural Rules
- D. Rule-making Power of the Supreme Court
- E. Classification of Philippine Courts
- F. Hierarchy of Courts
- G. Doctrine of Non-interference or Judicial Stability

II. JURISDICTION

- A. Concept
 - 1. Distinguished from Exercise of Jurisdiction
 - 2. Distinguished from Venue
 - 3. Adherence of Jurisdiction; Residual Jurisdiction; Primary Jurisdiction
 - 4. How Determined and Conferred
- B. Subject Matter Jurisdiction
 - 1. Kinds
 - a. Original and Appellate
 - b. General and Special
 - c. Exclusive and Concurrent
 - 2. Waiver and Compromise
 - 3. Effect of Estoppel
 - 4. Error of Jurisdiction
- C. Acquired Jurisdiction
 - 1. Over the Parties
 - a. Jurisdiction over the Plaintiff
 - b. Jurisdiction over the Defendant
 - 2. Over the Issues
 - 3. Over the *Res* or Property in Litigation
- D. Jurisdiction of Philippine Courts and Tribunals
 - 1. Inherent Powers and Means to Carry out Jurisdiction
 - 2. Supreme Court
 - 3. Court of Appeals

4. Sandiganbayan
5. Court of Tax Appeals
6. Regional Trial Courts
7. Family Courts
8. Special Commercial Courts and Cybercrime Courts
9. Metropolitan and Municipal Trial Courts – R.A. No. 11576
 - a. Expedited Proceedings – A.M. No. 08-8-7-SC
10. *Lupong Tagapamayapa* – R.A. No. 7160, Secs. 408, 409, and 412

III. CIVIL PROCEDURE

Rules of Court, as amended by A.M. No. 19-10-20-SC

- A. Classification of Actions
 1. Ordinary and Special
 2. Personal and Real
 3. *In Rem*, *In Personam*, and *Quasi In Rem*
- B. Cause of Action – Rule 2
- C. Parties to Civil Actions – Rule 3
- D. Venue – Rule 4
- E. Pleadings
 1. Kinds – Rule 6
 2. Parts – Rule 7
 3. Allegations – Rule 8
 4. Effect of Failure to Plead – Rule 9, Secs. 1 and 2
 5. Amended and Supplemental Pleadings – Rule 10
 6. Filing of Responsive Pleadings – Rule 11
 7. Bill of Particulars – Rule 12
 8. Filing and Service of Pleadings – Rule 13
 - a. Efficient Use of Paper Rule – A.M. No. 11-9-4-SC
 - b. Electronic Filing and Service – A.M. No. 10-3-7-SC; A.M. No. 11-9-4-SC
- F. Summons – Rule 14
 1. Issuance; Contents
 - a. By Whom Issued
 - b. Purpose in Relation to Actions *In Personam*, *In Rem*, and *Quasi In Rem*
 2. Service
 - a. By Whom Made
 - b. Modes
 - i. Personal
 - ii. Substituted
 - iii. Extraterritorial
 - (a) Hague Service Convention; Administrative Order [A.O.] No. 251-2020
 - iv. Upon Specific Persons and Entities
 - (a) Entity without Juridical Personality

- (b) Prisoners
 - (c) Minors and Incompetents
 - (d) Spouses (Relate to Rule 3, Sec. 4)
 - (e) Domestic Private Juridical Entity
 - (f) Foreign Private Juridical Entity
 - (g) Public Corporations
 - (h) Defendant whose Identity or Whereabouts Unknown
 - (i) Residents Temporarily out of the Philippines
- c. Proof; Alias Summons
- d. Return
- 3. Voluntary Appearance
- 4. Duty of Counsel of Record
- G. Motions – Rule 15
 - 1. Distinguished from Pleadings
 - 2. Litigious and Non-litigious Motions
 - 3. Prohibited Motions
 - 4. Omnibus Motion
- H. Dismissal and Default
 - 1. Dismissal upon Notice by Plaintiff; Two-dismissal Rule – Rule 17, Sec. 1
 - 2. Dismissal upon Motion by Plaintiff; Effect on Existing Counterclaim – Rule 17, Sec. 2
 - 3. Dismissal due to Fault of Plaintiff – Rule 17, Sec. 3
 - 4. Dismissal with Prejudice v. Dismissal without Prejudice
 - 5. Default – Rule 9, Sec. 3
- I. Pre-trial – Rule 18 and A.M. No. 03-1-09-SC
 - 1. Court-Annexed Mediation (CAM)
 - 2. Judicial Dispute Resolution (JDR)
- J. Intervention – Rule 19
- K. Calendar of Cases – Rule 20
- L. Subpoena – Rule 21
- M. Computation of Time – Rule 22
- N. Modes of Discovery – Rules 23-29
- O. Trial – Rule 30
- P. Consolidation or Severance – Rule 31
- Q. Demurrer to Evidence – Rule 33
 - 1. Denial
 - a. Consequences
 - b. Remedy
 - 2. Consequences of Grant
 - 3. Reversal of Demurrer on Appeal
- R. Judgments and Final Orders
 - 1. How Rendered – Rule 36
 - 2. Judgment on the Pleadings – Rule 34
 - 3. Summary Judgments – Rule 35
- S. Post-judgment Remedies
 - 1. New Trial – Rule 37

2. Reconsideration – Rule 37
 - a. Remedy against Denial
 - b. Fresh Period Rule
3. Relief from Judgment – Rule 38
4. Annulment of Judgment – Rule 47
5. Collateral Attack
6. Appeal and Review
 - a. Coverage
 - i. Subjects of Appeal and Review
 - ii. Matters not Appealable
 - b. Periods for Filing
 - c. Perfection of Appeal
 - d. Issues Cognizable
 - e. Modes
 - i. Appeal from the Municipal Trial Courts to the Regional Trial Courts – Rule 40
 - ii. Appeal from the Regional Trial Courts – Rule 41
 - iii. Petition for Review from the Regional Trial Courts to the Court of Appeals – Rule 42
 - iv. Appeal from the Court of Tax Appeals and Quasi-Judicial Bodies to the Court of Appeals – Rule 43
 - v. Appeal by *Certiorari* to the Supreme Court – Rule 45
 - vi. Review of Judgments and Final Orders or Resolutions of the Commission on Audit and Commission on Elections – Rule 64
- T. Execution, Satisfaction, and Effect of Judgments – Rule 39
 1. Immutability of Final Judgments
 2. Execution as a Matter of Right and of Discretion
 3. When Execution shall Issue
 4. How a Judgment is Executed
 - a. By Motion or Independent Action
 - b. Execution of Judgments for Money
 - c. Execution of Judgments for Specific Acts
 - d. Execution of Special Judgments
 - e. Requisites before Demolition Order is Issued
 - f. Effect of Levy on Third Persons
 5. Properties Exempt from Execution
 6. Proceedings where Property is Claimed by Third Persons
 7. Effect of Judgment or Final Orders
 8. *Res Judicata*
 - a. Bar by Prior Judgment
 - b. Conclusiveness of Judgment
 9. Enforcement and Effect of Foreign Judgments or Final Orders

IV. PROVISIONAL REMEDIES

A. Nature and Purpose

- B. Preliminary Attachment – Rule 57
 - 1. Grounds for Issuance
 - 2. Grounds for Dissolution
 - 3. Posting of a Counterbond
 - 4. Requisites; Issuance and Contents of Order of Attachment; Affidavit and Bond
- C. Preliminary Injunction – Rule 58
 - 1. Definitions and Differences: Preliminary Injunction, Temporary Restraining Order, and *Status Quo Ante* Order
 - 2. Requisites
 - 3. Kinds
 - 4. Grounds for Issuance
- D. Receivership – Rule 59
- E. Replevin – Rule 60
- F. Support *Pendente Lite* – Rule 61
- G. Provisional Deposit – Rule 135, Secs. 5(g) and 6, in relation to *Lorenzo Shipping Corp. v. Villarin*, G.R. Nos. 175727 & 178713, March 6, 2019 and *Guerrero Estate Dev't. Corp. v. Leviste & Guerrero Realty Corp.*, G.R. No. 253428, February 16, 2022

V. SPECIAL CIVIL ACTIONS

- A. Concept
- B. Interpleader – Rule 62
- C. Declaratory Relief and Similar Remedies – Rule 63
- D. *Certiorari*, Prohibition, and *Mandamus* – Rule 65
- E. *Quo Warranto* – Rule 66
- F. Expropriation – Rule 67; R.A. No. 8974, Sec. 4
 - 1. Stages of Expropriation
 - 2. Immediate Possession of Expropriated Land – R.A. No. 10752
 - 3. Ascertainment of Just Compensation
- G. Foreclosure of Real Estate Mortgage – Rule 68; R.A. No. 8791, Sec. 47
 - 1. Judicial
 - 2. Extrajudicial – Act No. 3135
- H. Partition – Rule 69
- I. Forcible Entry and Unlawful Detainer – Rule 70
- J. Contempt – Rule 71

VI. SPECIAL PROCEEDINGS AND WRITS

- A. Settlement of Estate of Deceased Persons
 - 1. Venue and Process – Rule 73
 - 2. Extrajudicial – Rule 74, Secs. 1, 4, and 5
 - 3. Judicial
 - a. Summary Settlement – Rule 74, Secs. 2-5

- b. Intestate – Petition for Letters of Administration – Rules 78-79
 - c. Testate – Probate Proceedings
 - i. Allowance or Disallowance of Will – Rules 76-77
 - ii. Letters Testamentary
 - (a) Issuance – Rule 78
 - (b) Opposition – Rule 79
 - d. Claims against Estate – Rule 86
 - e. Payment of the Debts of the Estate – Rule 88
 - f. Distribution and Partition of the Estate – Rule 90
- B. Guardianship – Rules 92-97
- C. *Habeas Corpus* – Rule 102
- D. *Habeas Corpus* in Relation to Custody of Minors – A.M. No. 03-04-04-SC
- E. *Amparo* – A.M. No. 07-9-12-SC
- F. *Habeas Data* – A.M. No. 08-1-16-SC
- G. Change of Name – Rule 103
- H. Cancellation or Correction of Entries in the Civil Registry – Rule 108
- I. Clerical Error Act and its Implementing Rules – R.A. No. 9048, as amended by R.A. No. 10172
- J. Environmental Cases – A.M. No. 09-6-8-SC
 - 1. Temporary Environmental Protection Order (TEPO)
 - 2. Writ of Continuing *Mandamus*
 - 3. Writ of *Kalikasan*

VII. CRIMINAL PROCEDURE

- A. Criminal Jurisdiction
 - 1. Concept
 - 2. Requisites
- B. Prosecution of Offenses – Rule 110
 - 1. Institution of Criminal Actions
 - 2. Effect of the Institution of the Criminal Action on the Prescriptive Period
 - 3. Who may Prosecute; Crimes that Cannot be Prosecuted *De Oficio*
 - 4. Intervention of Private Offended Party
 - 5. Control of Prosecution
 - 6. Complaint and Information; Sufficiency
 - 7. Date of Commission of the Offense
 - 8. Designation of Offense; Qualifying and Aggravating Circumstances
 - 9. Name of the Accused; Name of the Offended Party
 - 10. Amendment and Substitution of Complaint or Information
 - 11. Duplicity of the Offense
- C. Prosecution of Civil Action – Rule 111
 - 1. Implied Institution of Civil Action *Ex Delicto*
 - 2. Independent Civil Actions
 - 3. Reservation, Suspension, and Waiver
 - a. In B.P. Blg. 22 Cases

4. Civil Liability *Ex Delicto*
 - a. When Accused Acquitted
 - b. When Accused Dies
5. Prejudicial Question
- D. Preliminary Investigation – Rule 112
 1. Nature and Purpose
 2. Who may Conduct – R.A. No. 10071
 3. When not Required
 4. Determination of Probable Cause
 - a. Nature; Non-interference
 - b. *Prima Facie* Case with Reasonable Certainty of Conviction – Department of Justice [DOJ] Circular No. 2024-015; DOJ Circular No. 2024-028
 5. Remedy from Investigator’s Action
 - a. Motion to Reopen
 - b. Motion for Reinvestigation
 - c. Appeal from Investigator’s Resolution – DOJ Circular No 2000-70; DOJ Circular No. 2022-027
 6. Inquest
 7. Effect of Absence
 8. Withdrawal of Information
- E. Arrest – Rule 113
 1. Warranted Arrest
 - a. How Made
 - b. Requisites for the Issuance of a Warrant of Arrest
 2. Warrantless Arrest, When Lawful
 3. Method of Arrest
 4. Use of Body Cameras – A.M. No. 21-06-08
 5. Waiver of Objections to Irregularity
- F. Bail – Rule 114
 1. When a Matter of Right; Exceptions
 2. When a Matter of Discretion
 3. Where Filed
 4. Application for Bail in Capital Offenses
 5. Guidelines in Fixing Amount
 6. Bail-negating Circumstances
 7. Remedy When Denied
 8. Forfeiture
 9. Recognizance – R.A. No. 10389
- G. Rights of Accused – Rule 115
 1. Rights of Accused at Trial
 2. Rights of Persons under Custodial Investigation
- H. Arraignment and Plea – Rule 116
 1. Purpose of Arraignment
 2. Searching Inquiry

3. Guilty Plea
 - a. Lesser Offense
 - b. Capital Offense
 - c. Non-capital Offense
4. Improvident Plea
5. Bill of Particulars
6. Suspension of Arraignment
- I. Motion to Quash – Rule 117
 1. Grounds
 2. Double Jeopardy
 3. Provisional Dismissal
- J. Pre-trial – Rule 118
 1. Pre-trial Agreement
 2. Non-appearance at Pre-trial Conference
 3. Pre-trial Order
 4. Cases for Mediation on the Civil Liability
- K. Trial – Rule 119
 1. Trial *In Absentia*
 2. Remedy when Accused is Not Brought to Trial within the Time Limit
 3. Conditional Examination of Witness for the Prosecution or Defense
 4. Requisites for Discharge of Accused as State Witness
 5. Reopening of the Proceedings
 6. Revised Guidelines for Continuous Trial of Criminal Cases
– A.M. No. 15-06-10-SC
- L. Demurrer to Evidence
- M. Judgment – Rule 120
 1. Requisites of a Valid Judgment
 2. Promulgation of Judgment
 - a. Non-appearance of Accused
 - b. Promulgation *In Absentia*
- N. New Trial or Reconsideration – Rule 121
- O. Appeal – Rule 122
- P. Search and Seizure – Rule 126
 1. Warranted Search and Seizure
 - a. Search Warrant
 - i. Nature
 - ii. Requisites for Issuance
 - iii. Probable Cause
 - iv. Quashal
 - v. Cybercrime Warrants – A.M. No. 17-11-03-SC
 - vi. Searches in State Detention Facilities
 - b. Extent of Search
 - c. Conduct of Search
 2. Warrantless Search
 - a. Incidental to Lawful Arrest
 - b. Moving Vehicle

- c. Public Transit or Public Utility Vehicles
 - d. Checkpoints
 - e. Airport Frisking
 - f. Buy-bust Operation
 - g. Plain View
 - h. Stop and Frisk
 - i. Consented Searches
- 3. Rules on the Use of Body-worn Cameras in the Execution of Warrants – A.M. No. 21-06-08-SC
- 4. Effect of Illegal Search and Seizure
- Q. Provisional Remedies in Criminal Cases – Rule 127

VIII. EVIDENCE

- A. General Provisions and Principles – Rule 128
 - 1. Definition of Evidence
 - 2. Uniformity of Evidentiary Rules
 - 3. Proof v. Evidence
 - 4. *Factum Probans* v. *Factum Probandum*
- B. Liberal Construction of the Rules on Evidence
- C. Judicial Notice – Rule 129, Secs. 1-3
- D. Judicial Admissions – Rule 129, Sec. 4
- E. Admissibility
 - 1. Requisites – Rule 128, Sec. 3
 - a. Relevance; Collateral Matters – Rule 128, Sec. 4
 - 2. Multiple Admissibility
 - 3. Conditional Admissibility
 - 4. Curative Admissibility
- F. Weight and Sufficiency – Rule 133
 - 1. Standards
 - a. Proof Beyond Reasonable Doubt
 - b. Preponderance of Evidence
 - c. Substantial Evidence
 - d. Clear and Convincing Evidence
 - 2. Direct and Circumstantial Evidence
 - 3. Competent and Credible Evidence
 - 4. Positive and Negative Evidence
 - 5. Evidentiary Weight of Electronic Documents – A.M. No. 01-7-01-SC, Rule 7
- G. Kinds
 - 1. Object or Real Evidence – Rule 130, Part A
 - a. Requisites for Admissibility
 - b. Categories of Object Evidence
 - c. Chain of Custody
 - d. Rule on DNA Evidence – A.M. No. 06-11-5-SC

2. Documentary Evidence – Rule 130, Part B
 - a. Original Documents and Secondary Evidence
 - b. Parol Evidence
 - c. Interpretation of Documents
 - d. Electronic Documents and Electronic Signatures – A.M. No. 01-7-01-SC, Rules 3-6
 - e. Ephemeral Electronic Communications – A.M. No. 01-7-01-SC, Rule 11, Sec. 2
 3. Testimonial Evidence – Rule 130, Part C
 - a. Concept
 - b. Who may be Witnesses
 - i. Children – A.M. No. 04-07-SC, Sec. 6
 - c. Disqualification of Witnesses
 - d. Testimonial Privilege
 - e. Admissions and Confessions
 - f. Previous Conduct as Evidence
 - g. Hearsay Rule and Exceptions
 - i. Electronic or Optical or Other Similar Business Records – A.M. No. 01-7-01-SC, Rule 8
 - h. Opinion Rule
 - i. Character Evidence
 4. Audio, Photographic, and Video Evidence – A.M. No. 01-7-01-SC, Rule 11, Sec. 1
- H. Presentation of Evidence – Rule 132
1. Examination of a Witness
 - a. Rights and Obligations of a Witness
 - b. Examination of Child Witness – A.M. No. 04-07-SC
 - c. Judicial Affidavit in lieu of Direct Examination – A.M. No. 12-8-8-SC
 2. Authentication and Proof of Documents
 - a. Meaning of Authentication
 - b. Classes of Documents
 - c. Authentication of Private Writings
 - d. Public Documents as Evidence
 - e. Proof of Official Record
 3. Offer and Objection
 - a. When Evidence Offered
 - b. Objection to Evidence
 - c. Tender of Excluded Evidence
- I. Burden of Proof and Burden of Evidence – Rule 131, Sec. 1
- J. Presumptions
1. Conclusive Presumptions – Rule 131, Sec. 2
 2. Disputable Presumptions – Rule 131, Sec. 3
 3. Presumptions in Civil Actions and Proceedings – Rule 131, Sec. 5
 4. Presumption against an Accused in Criminal Cases – Rule 131, Sec. 6

K. Rules on the Transmission and Execution of Letters of Request for Taking of Evidence in Civil or Commercial Matters under the 1970 Hague Evidence Convention – A.M. No. 25-02-17-SC

1. Scope and Applicability – Sec. 1
2. Definition of Terms – Sec. 2
3. Use of Evidence Taken Abroad – Sec. 18
4. Effect of Using Evidence Taken Abroad – Sec. 19
5. Admissibility of Evidence Taken Abroad – Sec. 20
6. Privileges – Sec. 33
7. Interpretation of the Rules – Sec. 34

IX. LEGAL AND JUDICIAL ETHICS

A. Legal Ethics – Code of Professional Responsibility and Accountability (CPRA), A.M. No. 22-09-01-SC

1. Practice of Law
 - a. Definition and Nature – CPRA, Canon III, Sec. 1
2. Admission to the Practice of Law
 - a. Legal Education
 - i. Pre-law
 - ii. Law Proper
 - iii. R.A. No. 7662 (Legal Education Reform Act)
 - b. Citizenship
 - c. Good Moral Character
 - d. Bar Examinations
 - e. Lawyer's Oath (Revised as of April 11, 2023)
 - f. Signing in the Roll of Attorneys
3. Continuing Requirements for Membership in the Bar
 - a. Mandatory Continuing Legal Education (MCLE) – CPRA, Canon III, Sec. 24; Canon IV, Sec. 8
 - b. Membership Dues – CPRA, Canon III, Sec. 26
 - c. Professional Tax – R.A. No. 7160, Sec. 139
 - d. Legal Aid – CPRA, Canon III, Sec. 25; A.M. No. 22-11-01-SC, (Rules on Unified Legal Aid Service)
4. Who May Practice Law
 - a. Members of the Bar
 - i. Suspended or Disbarred Lawyers – CPRA, Canon VI, Sec. 52
 - b. Non-members of the Bar
 - i. Law Students – A.M. No. 19-03-24-SC
 - ii. Paralegals – CPRA, Canon II, Secs. 34-35
 - iii. Parties and their Agents or Appearance *Pro Se*
 - (a) Cadastral Proceedings – Act No. 2259, Sec. 9
 - (b) Labor Cases – LC, Art. 228
 - (c) Agrarian Reform Proceedings – R.A. No. 6657, Sec. 50, as amended by R.A. No. 9700, Sec. 18
 - (d) *Barangay* Conciliation – R.A. No. 7160, Sec. 415

- (e) Cases under Expedited Procedure – A.M. No. 08-8-7-SC, Secs. 12 and 22
 - (f) Arbitration – R.A. No. 9285, Sec. 22; R.A. No. 876, Sec. 12
- c. Members of the Bar Prohibited from Private Practice
 - i. President, Vice-President, Members of the Cabinet, their Deputies and Assistants
 - ii. Senators and Members of the House of Representatives
 - iii. Members of the Constitutional Commissions
 - iv. Ombudsman and their Deputies
 - v. Justices, Judges, and Court Employees
 - vi. Governors and Mayors – R.A. No. 7160, Sec. 90(a)
 - vii. Government Officials and Employees – R.A. No. 6713, Sec. 7(b)(2) in relation to Office of the President Memorandum Circular No. 17, s. 1986 and Rule XVIII, Sec. 12 of the Revised Civil Service Rules
- d. Members of the Bar with Limited Legal Practice
 - i. Vice-Governors, Vice-Mayors, and Members of Local Legislative Bodies – R.A. No. 7160
 - ii. Government Lawyers
 - (a) With Authority to Engage in Limited Law Practice
 - (b) Separated from the Service – R.A. No. 6713
 - iii. Retired Judges and Justices – R.A. No. 910, as amended
 - iv. In Small Claims and *Katarungang Pambarangay*
- e. Foreign Lawyers – CPRA, Canon III, Sec. 33
- 5. Privileges of a Lawyer
- 6. Unauthorized Practice of Law
 - a. Penalties
- 7. Duties and Responsibilities of Lawyers – CPRA
 - a. General Provisions
 - i. Integrity as Central Principle – Preamble
 - ii. Applicability of CPRA – Sec. 1
 - iii. Repealing Clause – Sec. 2
 - iv. Effectivity Date – Sec. 3
 - b. Independence – Canon I
 - i. Concept – Introduction and Sec. 1
 - ii. Accessible, Efficient, and Effective Legal Service
 - iii. Merit-based Legal Practice
 - iv. Avoiding Improper Considerations and External Influence
 - v. Non-interference in Courts or Tribunals
 - vi. Discretion in Procedure and Strategy
 - (a) Client's Decision to Settle Case
 - c. Propriety – Canon II
 - i. Concept – Introduction
 - ii. Proper and Dignified Conduct – Secs. 1 and 2
 - iii. Dignified, Gender-fair, Child- and Culturally-sensitive Language – Sec. 4

- iv. Correcting Misrepresentations in Applications for Admission to the Bar – Sec. 11
- v. Reporting Dishonest, Deceitful, or Misleading Conduct – Sec. 12
- vi. Disclosure of Relationship or Connection – Sec. 20
- vii. Avoiding Plagiarism and Misrepresentation of Legal Authorities – Sec. 8
- viii. Non-solicitation and Advertisement – Sec. 17
- ix. *Sub Judice* Rule – Sec. 19
- x. Avoiding Gifts and Donations to Courts and Government Agencies – Sec. 21
- xi. Avoiding Abuse of the Right to Sue and of Court Processes – Sec. 23; Canon III, Sec. 7
- xii. Avoiding Encroachment or Interference in Another Lawyer’s Engagement – Sec. 24
- xiii. Responsible Use of Social Media – Secs. 36-44
- d. Fidelity – Canon III
 - i. Concept – Introduction and Sec. 2
 - ii. Lawyer-Client Relationship
 - (a) Definition – Sec. 3
 - (b) Duty of Representation
 - (1) Authority of Lawyer to Bind Client – Sec. 4
 - (2) Authority of Lawyer to Appear – Sec. 5
 - (c) Fiduciary Duty – Sec. 6
 - (1) Encouragement of Settlement – Sec. 8
 - (2) Rectification of Fraud – Sec. 9
 - (d) Lawyer’s Right to Compensation
 - (1) Attorney’s Fees – Secs. 41-48
 - (2) Attorney’s Lien – Sec. 47
 - (e) Management of Client Resources
 - (1) Lending and Borrowing – Sec. 52
 - (2) Interest in Object of Litigation/Transaction – Sec. 51; NCC, Art. 1491(5)
 - (3) Accounting and Management of Funds – Secs. 49 and 50
 - (f) Keeping Client Confidences – Secs. 27-30
 - (g) Duty to Provide Regular Updates – Canon IV, Sec. 6
 - (h) Termination – Secs. 53-56
 - (1) By the Lawyer
 - (2) By the Client
 - (3) By Death of Either Party
 - (4) Accounting and Turnover of Funds
 - iii. Conflict of Interest – Secs. 13-22
 - iv. Responsibilities of Solo Practitioners – Canon II, Sec. 25
 - v. Responsibilities of Law Firms and Legal Clinics – Secs. 10, 11, 20, and 40

- vi. Responsibilities of Government Lawyers and Prosecutors – Canon II, Secs. 28 and 29
 - vii. General Duties of Confidentiality – Secs. 31 and 32
 - viii. Limited Legal Services – Secs. 35-40
- e. Competence and Diligence – Canon IV
 - i. General Duty of Competence – Sec. 1; Sec. 2, first sentence
 - ii. Collaboration with other Counsel – Sec. 2
 - iii. Avoidance of Delay – Sec. 3, first sentence; Secs. 4 and 7
 - iv. Punctuality – Sec. 3, second sentence
 - v. Responding to Inquiries – Sec. 5
 - vi. Multiple Professions; Business – Secs. 9 and 10
- f. Equality – Canon V
 - i. Non-discrimination – Secs. 1 and 4
 - ii. Higher Standard of Service to Vulnerable Persons – Sec. 2
 - iii. Representation of Indigents – Sec. 3
- 8. Discipline and Disbarment of Lawyers – CPRA, Canon VI
 - a. Nature of Bar Discipline Proceedings
 - i. Non-penal; Public Welfare Measure
 - ii. Not Subject to Desistance or Compromise – Sec. 16
 - b. Institution of Bar Discipline Proceedings – Secs. 2, 3, and 30
 - i. Against Government Lawyers – Sec. 6
 - ii. Against Members of the Judiciary – Sec. 2
 - c. Charges and Sanctions – Secs. 33-37
 - d. Preventive Suspension – Sec. 31
 - e. Quantum and Burden of Proof – Sec. 32
 - f. Executory Nature of Decision or Resolution – Sec. 43
 - g. Sworn Statement After Service of Suspension – Secs. 45 and 46
 - h. Clemency – Secs. 47-51
- 9. Notarial Practice – A.M. No. 02-8-13-SC, as amended
 - a. Qualifications
 - b. Term of Office
 - c. Powers and Limitations
 - d. Notarial Register
 - e. Jurisdiction and Place of Notarization
 - f. Competent Evidence of Identity
 - g. Sanctions
 - h. Remote Notarization – A.M. No. 20-07-04-SC, July 14, 2020
- B. Judicial Ethics
 - 1. Sources
 - a. New Code of Judicial Conduct (NCJC) – A.M. No. 03-05-01-SC
 - b. Bangalore Principles of Judicial Conduct 2002
 - c. 1989 Code of Judicial Conduct (1989 CJC)
 - d. Rules of Court
 - 2. Principles
 - a. Independence – NCJC, Canon 1; 1989 CJC, Canon 1
 - b. Integrity – NCJC, Canon 2; 1989 CJC, Canon 1, Rules 3.02 to 3.05

- c. Impartiality – NCJC, Canon 3; 1989 CJC, Canon 3
- d. Propriety – NCJC, Canon 4; 1989 CJC Canon 5, Rule 3.03,
 - i. Conditions to Engage in Business – 1989 CJC, Canon 5, Rules 5.02 and 5.04
 - ii. Conditions for Teaching – A.M. No. 13-05-05-SC; OCA Circular No. 218-2019
 - iii. Purchase of Property in Litigation – NCC, Art. 1491(5)
- e. Equality – NCJC, Canon 5
- f. Competence and Diligence – NCJC, Canon 6; 1989 CJC, Canon 4, Rules 3.01 and 3.05
- 3. Inhibition and Disqualification – Rules of Court, Rule 137; 1989 CJC, Rules 3.12 and 3.13
- 4. Administration and Discipline of Judges
 - a. Legal Basis – 1987 Constitution, Art. VIII, Secs. 5(5), 5(6), 6, 11, and Art. XI, Sec. 2; Rule 140, as amended by A.M. No. 21-08-09-SC
 - b. Disciplinary Proceedings against Members of the Judiciary
 - i. Impeachment – 1987 Constitution, Art. XI, Sec. 2
 - ii. Complaint against Members of the Supreme Court – Rule 140, Sec. 1(3)
 - iii. Judicial Disciplinary Proceedings – Rule 140
 - (a) Institution – Secs. 1 and 2
 - (b) Dual Nature – Sec. 4; A.M. No. 02-9-02-SC
 - (c) Charges – Secs. 13-16
 - (d) Sanctions – Secs. 17-23
 - (e) Clemency

X. PRACTICAL EXERCISES

- A. Promissory Note or Simple Loan Agreement
- B. Demand and Authorization Letters
- C. Sale Contract
- D. Lease Contract
- E. Special Power of Attorney
- F. Verification and Certification Against Forum Shopping
- G. Extra-judicial Settlement of Estate
- H. Judicial Affidavit
- I. Notarial Acts
 - 1. Jurat
 - 2. Acknowledgment
 - 3. Copy Certification
- J. Motions
 - 1. To Dismiss
 - 2. To Declare Defendant in Default
 - 3. Execution of Judgment
- K. Quitclaim in Labor Cases

L. Information

- 1. Consummated Crimes
- 2. Frustrated Crimes
- 3. Attempted Crimes

— NOTHING FOLLOWS —